

# Arif Ali Khan v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 9 December 2024 · 2024:AHC:192721-DB · WRIT - C No. 40728 of 2024 · **Disposed; fresh clause 6.5 representation before the Executive Engineer**

## HEADNOTE

Writ challenging a demand of Rs.4,03,768 dated 4 October 2024 disposed of, the parties having agreed that the grievance is redressable under clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may file a fresh complaint or representation before the Executive Engineer within ten days, to be decided on merits under that clause. Coercive action on the demand is restrained for one month or until disposal of the representation, whichever is earlier. The demand was not examined on merits.

## FACTUAL SUMMARY

Arif Ali Khan approached the Allahabad High Court against a demand order dated 4 October 2024 for Rs.4,03,768 raised by the Executive Engineer, Electricity Distribution Khand Second, Dakhinanchal Vidyut Vitran Nigam Ltd., Mainpuri. He asked that the demand be quashed, that no coercive action be taken on it, and that his representation dated 16 November 2024 be decided by that Executive Engineer.

## HOLDING-UNITS

### HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

disputed demand relegated to clause 6.5

#### HOLDING

Where the parties agree that a challenge to an electricity demand can be redressed under clause 6.5, the writ is disposed of with liberty to file a fresh complaint or representation before the Executive Engineer within ten days, to be decided on its own merits in accordance with that clause. If the remedy is invoked within ten days, coercive action on the demand is stayed for one month or until disposal of the representation, whichever is earlier. ¶ 3-6

## PRINCIPLE TAGS

**6.5-representation-as-appropriate-remedy** Both sides agreed that the challenge to the 4 October 2024 demand could be redressed under clause 6.5, and the writ was disposed of on that basis. ¶ 3-4

**clause-6.5-representation-executive-engineer** The consumer was left free to file a fresh complaint or representation under clause 6.5 before the Executive Engineer, Electricity Distribution Khand Second, Dakhinanchal Vidyut Vitran Nigam Ltd., Mainpuri, within ten days, for a decision on merits. ¶ 4-5

**para-6.5-objection-before-coercive-recovery** If the clause 6.5 representation is filed within ten days, no coercive action may be taken on the demand for one month or until that representation is decided, whichever is earlier. ¶ 6

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — CORRECTNESS OF THE DEMAND ORDER DATED 4 OCTOBER 2024 FOR RS.4,03,768

The Court stated that it had not considered the petitioner's claim on merits and left the demand to the Executive Engineer on a fresh clause 6.5 representation. ¶ 7

